

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

May 14, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10 a.m.		
1	Thompson v. Doan	FORTRA LAW through Jacoby Perez, Esq.'s motion to be relieved as counsel for Defendant Tri Minh Doan is CONTINUED to June 11, 2026, at 10:00 a.m. in this Department. The attorney's declaration does not satisfy Rules of Court, Rule 3.1362, subd. (d)(1), which requires that when a motion to be relieved is served on the client by mail, the declaration must state either that the service

		address was confirmed as the client's current address within 30 days before filing or that the address is the client's last known address and that, after reasonable efforts within that period, counsel was unable to locate a more current address. The declaration also fails to satisfy Rules of Court, Rule 3.1362, subd. (d)(2), which requires that when a motion is served on the client electronically, the declaration must state that the electronic service address is the client's current electronic service address. Rules of Court, Rule 3.1362 further provides that: As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies. No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve: (1) an amended or supplemental declaration that complies with Rules of Court, Rule 3.1362; and (2) an updated proposed order on Judicial Council form MC-053 that updates all current upcoming hearing information in Section 7. Client Doan may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client. <u>Case Management Conference</u> The Case Management Conference is continued to June 11, 2026, at 10 a.m. in this department. Plaintiff to give notice.
1:30 p.m.		
1	Esparza v. Almendarez	Defendant Nathan Alexander Almendarez's motion to tax costs by Plaintiff Jose Jesus Garcia Esparza is GRANTED in part and DENIED in part as set forth below. <u>Legal Standard</u> In general, the prevailing party is entitled as a matter of right to recover costs for suit in any action or proceeding. (Cal. Civ. Proc. Code §1032(b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606; <i>Scott Co. Of Calif. v. Blount, Inc.</i> (1999) 20 Cal.4th 1103, 1108.) Allowable costs under Code of Civil Procedure section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under section 1033.5(a) nor prohibited under subdivision (b)